

		no other less restrictive means of protecting the privacy interests involved. Clerk to give notice.
2	The Irvine Company LLC vs. Hacatoryan Corporation 30-2024-01418952-CU-BC-CJC	Motion to Compel Reference and to Appoint Referee Plaintiff The Irvine Company, LLC's Motion to Compel Reference and to Appoint a Referee is DENIED. The Court overrules Defendants' objection to Kroll's declaration and exhibit 1 to the declaration. (See <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.) Plaintiff waived its right to compel reference under the lease by participating in litigation for 22 months and presenting no explanation for the delay. (See <i>Hofer v. Boladian</i> (2025) 111 Cal.App.5th 1, 13 ["Unexplained delay in seeking arbitration, while proceeding with litigation in court without mentioning or seeking to preserve the right to arbitrate, constitutes powerful evidence of the relinquishment and abandonment of the right to arbitrate—including delays comparable to the delay in this case"].) Clerk to give notice.
3	Asmar vs. Alphamotive Motors, LLC 30-2024-01395887-CU-BC-CJC	Motion to Set Aside Entry of Default The motion to set aside default of defendants Jean Pierre Castro and Byron Castro is DENIED. Default was entered against both defendants on 7/2/2025. The motion was filed on 5/28/2026, after the six-month cutoff in Code of Civil Procedure section 473, subdivision (b). Thus, defendants must establish equitable grounds for relief, including extrinsic fraud or mistake. (<i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 29 (<i>Kramer</i>).) Equitable relief may be given only in exceptional circumstances, and a court's equitable power is narrower than its power under section 473. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 982, 985.) Defendants declare they retained attorney Dan Miller to represent them in the action and paid him for legal services, believing he would represent all named defendants. However, Miller filed an answer only on behalf of defendant Alphamotive Motors, LLC. Defendants present no documentary evidence supporting their

		declarations, including, for example, an attorney-client fee agreement, emails or other communications concerning their individual representation, receipts or cancelled checks showing payment to Miller, or any like evidence of an attorney-client relationship. Further, defendants were served individually with the summons and complaint and later, the statement of damages, and Miller was served with the request for entry of default of defendants. Miller did nothing on their behalves, which the court infers as evidence Miller did <i>not</i> represent the individual defendants. Defendants have not submitted Miller's declaration. Defendants have not established <i>extrinsic</i> fraud or mistake for the mistaken belief Miller represented them individually. Intrinsic fraud exists when parties have had the opportunity to present their case but unreasonably failed to protect themselves. (<i>In re Marriage of Jones</i> (1987) 195 Cal.App.3d 1097, 1102.) If anything, there was an intrinsic fraud or mistake, which does not support a ground for relief. Finally, relief will be denied if the complaining party's negligence permitted the fraud to be practiced or the mistake to occur. (<i>Kramer, supra</i>, 56 Cal.App.5th at p. 30.) Defendants' negligence led to the result they now face. There are no exceptional circumstances justifying relief. Clerk to give notice. Motion to Strike Defendant Alphamotive Motors, LLC's Answer and Enter Default Plaintiff's motion to strike defendant Alphamotive Motors, LLC's answer and for entry of default is DENIED. Plaintiff has not filed a proof of service of the motion. Clerk to give notice.
4	Clancy vs. General Motors, LLC 30-2023-01350071-CU-BC-CJC	Motion for Attorney Fees, Costs, and Expenses Plaintiff Timothy E. Clancy's motion for attorney fees is DENIED.